



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

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SR SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 90TH REGULAR SESSION OF THE 13TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE MUNICIPAL SESSION HALL ON AUGUST 13, 2024

PRESENT:

Hon. Harvey S. Manawatao Municipal Vice-Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Renato A. Calañas		SB Member
Hon. Michael C. Escuyos		SB Member
Hon. Carmelito E. Valeroso		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Tanie A. Quillano		SB Member



EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

SECTORAL REPRESENTATIVE:

Hon. Ricardo S. Iligan		IP Mandatory Representative
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ABSENT: none

ORDINANCE NO. 14
Series of 2024

**"AN ORDINANCE PROVIDING FOR A COMPREHENSIVE CHILD SUPPORT SYSTEM FOR THE LOCAL
GOVERNMENT OF CARMEN, SURIGAO DEL SUR"**

Author : Hon. Elvie U. Ohao

Enacted: All Members present

EXPLANATORY NOTE

The Ordinance highlights the State policy to provide special protection for children against abuse, neglect cruelty, exploitation and discrimination. It underscores the need for sanction against these acts which emphasizes the importance of preventing measures to ensure the welfare and opportunities for children to lead useful and happy lives. The State values the dignity of women and children, guaranteeing full respect for human rights. It recognizes the necessity to protect families,

especially women and children, from violence and threat to their personal safety and security. This ordinance aligns with these values by ensuring a supportive environment for children.

This Ordinance aims to:

1. Protect children from abuse and exploitation, implement measures to safeguard children from all forms of harm.
2. Promote child welfare to opportunities, ensure that children have the resources the support needed for a happy and productive life.
3. Enhance family safety and security, provide a safe and secure environment for families, particularly women and children.
4. Support the youth development, encourage the growth and development of young people in various aspect life.
5. Improve health literacy and lifestyle: align with national health policies to educate and promote healthy living among children and families.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur, in a session assembled, that:

CHAPTER I. GENERAL PROVISIONS

SECTION 1. General Objectives- This Ordinance seeks to:

- a) Reinforce the provision or establishment of a Comprehensive Child Support System in the Municipality of Carmen, Province of Surigao del Sur that promotes and protects the overall well-being of its youth.
- b) Promote the dignity and welfare of children and enhance their opportunities for a useful and happy like taking proactive measures to keep them away from violence and injury.
- c) Prevent the occurrence of violence and protect children from threats to their personal safety and security in their homes, schools, communities, and other settings.
- d) Provide a safe and supportive environment for all people, especially for vulnerable groups such as children, to live, study/work, play, and perform other activities in their communities.

CHAPTER II. DEVELOPMENT RIGHTS OF CHILDREN

SECTION 2. Education and Information Program- The Municipal Social Welfare and Development Office (MSWDO), together with other related agencies, organizations, and individuals, shall endeavor to develop, implement, maintain, and sustain a continuing education and information program, including but not limited to:

- a) Early Childhood Care and Development- The MSWDO, through its Early Childhood Care and Development Unit, shall be responsible for the creation and implementation of the Child Development Worker and Child Development Service Manual which shall form part of the Rules and Regulations and Implementing guidelines to be applied to both publicly and privately-owned centers.
- b) Establishment of Child Development Centers- The Local Government shall be mandated to establish Child Development Centers in every barangay. The number of Child Development Centers shall depend on the population of children in the barangay. Materials, workbooks, and other needs of every child in Child Development Centers shall be duly provided by the Local Government.
- c) Special Education- The MSWDO, in collaboration with the Schools Division Office (SDO) of the Municipality of Carmen shall continuously develop, sustain, and support Special



Education with the assistance of other related agencies, organizations, and individuals. Likewise, the MSWDO shall be responsible for the creation and implementation of the Special Education Manual which shall form part of the Rules and Regulations and Implementing guidelines to be applied to both publicly and privately-owned learning institutions. Materials, workbooks and other needs of every child in Special Education shall be duly provided for by the Local Government.

- d) Responsible Parenthood Orientation Course- Would-be couples shall be required to undergo a Responsible Parenthood Orientation Course in addition to the Family Planning and Pre-Marriage Counseling Seminars being provided by the Local Government through its SWDO. This course shall be an integral part of existing related programs and shall include discussions on the Conventions of Rights of Children. It shall also serve as a pre-requisite to the issuance of a Marriage License by the Local Civil Registrar.
- e) Training Seminars on the Rights of Children- The Local Council for the Protection of Children (LCPC), in cooperation with other related agencies, organizations, and individuals, such as the Local Health Office Health Promotion Unit (HPU) and Barangay Health Workers (BHWs) in their capacity as barangay-level Health Education and Promotion Officers (HEPOs), shall regularly provide training workshops, seminars and other such capacity development sessions for identified target audiences or the general public on the rights of Children.
- f) Training Seminars for Handling Differently-Abled Children- The LCPC, in cooperation with the Local Health Office and other related agencies, organizations, and individuals, shall regularly provide training workshops, seminars, and other such capacity development sessions for educations, school personnel, health workers, and barangay officials and personnel on proper handling and treatment of differently-abled children.
- g) Information Dissemination on the Prevention of Child Sexual Abuse and Other forms of Child Abuse- The MSWDO, Local Health Office HPU, Municipality of Carmen, Peace and Order Council and the Public Information Office shall institutionalize a comprehensive and effective information and communication campaign utilizing various materials and platforms or channels to inform the public about the prevention of child sexual abuse and other forms of abuse in the Municipality of Carmen.
- h) Personal Safety Lessons- The SDO shall include modules or lessons on Personal Safety in Elementary and High School curricula, based on Dep-Ed Order No. 40, Series of 2012.
- i) Educational Supplies- The Municipal Government of Carmen shall provide every public Elementary School student with adequate educational supplies, including but not limited to; backpack, complementary work-texts, notebooks, pens, pencils and tumbler.
- j) Infrastructure Program- The Municipal Government of Carmen, through its Engineering Office, shall continuously construct and maintain education facilities and renovate outdated and dilapidated facilities to ensure that all students will have a safe, comfortable, and child-friendly learning environment.

SECTION 3. Child-Friendly Building and Establishment- The creation and provision of Child-Friendly Facilities shall be required and monitored by the Office of the Building Official, Engineering Office, and the Municipal Planning and Development Coordinator Office based on the provisions of the National Building Code before the approval of plans and permits pertinent to the construction or renovation of any structure, including but not limited to commercial buildings, hotels, recreational centers, malls, cinemas and theater, markets and groceries, department stores, commercial complex, parks and other public spaces.

The LCPC may recommend Child-Friendly Facilities other than those listed hereunder, for the establishment and maintenance of the Engineering Office and the Municipal Planning and Development Coordinator Office:



- a) Mini playground covering an area not less than nine (9) square meters.
- b) Handwashing facilities, lavatories, and urinals in toilets and comfort rooms appropriate and exclusive for children's use.
- c) Diaper changing area.
- d) Balusters, railings, and similar structures constructed in a manner that prevents children from accidentally falling through. The height of which shall be such that children will be prevented from climbing and accidentally falling.
- e) Evaluate centers with areas or safe spaces for play and leisure.
- f) Adequate lighting fixtures and surveillance equipment.
- g) Minimal or absence of areas that are isolated or concealed and may result in entrapment for existing establishments, structures, and buildings enumerated in the preceding paragraph, Child-Friendly Facilities shall be required to be installed within twelve (12) months after the approval of this Ordinance.

CHAPTER III. PROTECTION RIGHTS OF CHILDREN

SECTION 4. Program Against Exploitation Child Abuse and Discrimination- The Municipal Government of Carmen shall adopt and implement a comprehensive program developed by the LCPC, in cooperation with related agencies, organizations and individuals, which shall also cover the strict implementation of the provisions of R.A. 7610 (Special Protection of children Against Abuse, Exploitation and Discrimination Act), P.D. 603 (Child and Youth Welfare Code) and other related laws and local ordinances. The LCPC may also formulated plans and/or recommend the passage of related ordinance/s to the Sangguniang Bayan to further reinforce the effective implementation of said program.

4A) The Municipal Government of Carmen shall also adopt a coordinated program of services and facilities to protect children against:

- 1) Child prostitution and other sexual abuse
- 2) Child trafficking
- 3) Obscene publication and indecent shows
- 4) Hazardous work and activities
- 5) Circumstances which threaten or endanger the survival and development of children, and
- 6) Other acts of child abuse

SECTION 5. Anti-Drug Addiction Program- The Local Anti-Drug Abuse Council, Philippine National Police (PNP), MSWDO, Local Health Office, and DepED shall implement a drug addiction prevention program which includes a comprehensive information and education program which aims to educate the youth especially more vulnerable sectors such as Out of School Youth (OSY) and street children, regarding the negative effects of drug use and addiction.

SECTION 6. Adoption of the Barangay Protocol in Managing Cases of Children at Risk (CAR) and Children in Conflict with the Law (CICL)- The Municipal Government of Carmen, in coordination with the MSWDO, Women and Children's Protection Unit/Desk, and Liga ng mga Barangay President,

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shall adopt the Barangay Protocol in Managing Cases of Children at Risk and Children in Conflict with the Law.

SECTION 7. Adoption of the Child Abuse Prevention and Intervention Network (CAPIN) Program in Managing Cases of child Abuse- The Municipal Government of Carmen, in coordination with the MSWDO, Women and Children's Protection Unit/Desk (WCPU/D), and Liga ng mga Barangay President, shall adopt the CAPIN Program in managing cases of child abuse.

- a) **Information Dissemination and Capacity Development-** The Municipality of Carmen shall ensure the provision and dissemination of information regarding the above-mentioned protocol and program for cases of abuse, CICL and CAR in the LGU, as well as the training of relevant personnel handling such cases and implementing these protocols and programs such as social workers, lawyers, police, members of the Barangay Council for the Protection of Children, Barangay Health Workers.
- b) **Funding-** The Municipality of Carmen shall fund the operation of its Child Protection Unit form the 1% of the National Tax Allocation (NTA) as required by R.A. 9344 otherwise known as the Juvenile Justice and Welfare Act of 2006.

SECTION 8. Referral of Cases- To promote early intervention in cases of abuse of children, including but not limited to physical and sexual abuse, the MSWDO and Local Health Office shall ensure proper coordination between them once any information about child abuse is received. Any Public Officer or employee, including but not limited to police officers, school teachers or counselors, barangay officials, barangay VAWC Desk Officers, and Barangay Health Workers, who first encounters a child victim shall have the following duties and responsibilities:

- a) Respond immediately to a call for help or request for assistance or protection of the victim whether or not a protection order has been issued and ensure the safety of the victim/s.
- b) Transport or escort the victim/s to a safe place of their choice or to a clinic or hospital.
- c) Assist the Barangay Officials and other Government Officers and Employees who respond to a call for help.
- d) Immediately report the case for assessment or assistance of MSWDO or accredited Non-Government Organizations (NGOs).

The MSWDO shall then immediately assess if the victim should be placed under protective custody to ensure their safety and to effectively build a case.

SECTION 9. HealthCare Provider Response to Abuse and Mandatory Reporting- Pursuant to R.A. 9262 (Anti-Violence Against Women and their Children), any healthcare provider, including but not limited to, an attending physician, nurse, clinician, Barangay Health Worker, therapist or counselor, head of any public or private hospital, medical clinic or similar institutions, who suspect abuse or has been informed by the victim of violence shall have the following duties and responsibilities:

- a) Report, orally or in writing, to the MSWDO the examination of treatment of a child who appears to have or has suffered from abuse within forty-eight (48) hours from knowledge of the same.
- b) Properly document any of the victim's physical, emotional or psychological injuries.
- c) Properly record any of victim's suspicions, observations and circumstances of the examination or visit.



- d) Provide the victim free of charge a medical certificate concerning the examination or visit.
- e) Safeguard the records and reports and make them available to the victim upon request.
- f) Provide the victim immediately and adequate notice of rights and remedies, and services available to them.

Other Government Workers, especially those work involves dealing with children, including but not limited to teachers and school administrators, probation officers, government lawyers, law enforcement officers, barangay officials, and corrections officers shall also be responsible for reporting all incidents of possible child abuse to the MSWDO within forty-eight (48) hours from knowledge of the same.

- a) Failure to Report- Failure of any of the individuals mentioned in Section 10 and 11, as well as other responsible individuals to report a possible case of child abuse may be punishable with a fine of not more than Two Thousand Pesos (Php2,000.00).
- b) Immunity for Reporting- Any person, whether private individual or public officials, including those mentioned in Section 10 and 11, who witnessed a crime involving child abuse and who shall report the same to appropriate authorities shall be free from any civil or administrative liability arising therefrom. There shall be a presumption that any such person acted in good faith. In addition, individual who, acting in accordance with the law, shall respond to or intervene in a case of children abuse without using violence or restraint greater than necessary to ensure the safety of the victim, shall likewise not be liable for any criminal, civil or administrative liability resulting therefrom.
- c) Confidentiality- All records pertaining to cases of violence against children or child abuse, including those in the barangay, shall remain confidential and all public officers and employees of public or private clinics or hospitals shall respect the right to privacy of the victim. Whoever publishes or causes to be published, in any format, the name, address, telephone number, school, business address, employer, or other identifying information of a victim or an immediate family member, without the latter's consent, shall be liable to the contempt power of the court, and shall suffer the penalty of one (1) year imprisonment and a fine of not more than Two Thousand Five Hundred Pesos (Php2,500.00).

SECTION 10. Special Service, Protection, and Legal Assistance Program- The Local Government shall create special program through the LCPC, in coordination with other concerned agencies, organizations, and individuals, for children who are victims of incest, rape and other related child abuse cases needing special protection and legal assistance. The monitoring or criminal charges filed by children and other appropriate assistance shall be accorded by the Municipality of Carmen through the MSWDO, PNP, Department of Justice (DOJ), Local Health Office, and Prosecutor's Office. The Municipality of Carmen through MSWDO shall also assist qualified children to apply for claims for compensation under R.A. 7309 (An Act Creating a Board of claims for victims of Unjust Imprisonment of Detention and Victims of Violent Crimes).

SECTION 11. Employment of Children- Children as defined under the law shall not be employed, except:

- a) When the minimum requirement stated in Section 2 and 3 of R.A. 9231 (An Act Providing for the Elimination of the Worst forms of Child Labor and Affording Stronger Protection for the Working Child, amending for this Purpose R.A. 7610) are present.
- b) When the employer registers the child with the LCPC, to enjoy the benefits and protection as may be provided by the said Council.



- c) When allowed under R.A. 10917 (An Act Amending Certain Provision of Republic Act No. 9547 Otherwise known as an Act Strengthening and Expanding the coverage of the Special Program for Employment of Students, Amending for the Purpose Provision of R.A. 7323).
- d) When the company hiring minors has informed the Department of Labor and Employment (DOLE), Worker's Affairs Office (WAO) or the MSWDO of the details of employment, i.e. job description, compensation, and number of hours of work per day.
- e) When the hiring of children as provided for under this ordinance shall be with express written consent of their parents or legal guardians.

SECTION 12. Posting of Notice and Information Regarding Child Protection at Points of Entry and/or other Strategic Places- All establishment, such as bars, night clubs, beer house, taverns, disco houses, sauna baths, hotels, motels, inns, and others rendering similar services or considering high-risk for children shall be required to post notices and information regarding child protection and points of entry and/or strategic places within the premises in order to serve as deterrent to committing child trafficking, prostitution, other sexual exploitation, and other forms of child abuse.

SECTION 13. Regulating Ambulant Vendors in School Vicinities and Establishing a Monitoring System Thereof- The Local Government through the Local Health Office shall endeavor to protect school children from unsanitary food and drinks. All ambulant vendors within the vicinity of all school campuses in the jurisdiction of the LGU shall be subjected to regular safety and sanitation inspections. No vendor shall be allowed to sell or ply their trade without undergoing training in food and safety and proper food handling, as well as securing a health certificate.

CHAPTER IV. PARTICIPATORY RIGHTS OF CHILDREN

SECTION 14. Participation of Children in Decision Making Processes- The interest and welfare of children in the family, community, or other organization/institution, especially on matters affecting them, shall be taken into account and respected. It shall be the responsibility of the Local Government to provide opportunities for children to express their views, organize themselves, obtain information, express ideas or information regardless of age, sex and gender, religious, beliefs, and ethnicity.

SECTION 15. Mandatory Activities- Parents and/or legal guardians of children shall be required to attend meeting and activities called for or organized by school authorities or the Parent Teacher Association (PTA). Likewise, children are encouraged to attend and participate in all programs and activities organized by the school and/or the Local Government.

CHAPTER V. FINAL PROVISIONS

SECTION 16. Monitoring- The LCPC and other related agencies and offices, shall be tasked to monitor the implementation of this Ordinance. The LCPC shall be tasked further to study the effects of this Ordinance during its implementation in order to make a comprehensive analysis that would substantiate the need for any amendments.

SECTION 17. Appropriations- The Local Government shall provide the necessary funds for the effective implementation of the provision of this Ordinance in accordance with the approved Local Development Plan for Children. The source of funds shall be in accordance with the provision of Section 15 of R.A. 9344 which states that 1% of the NTA of barangays, municipalities, and cities shall be allocated for strengthening and implementing program of the LCPC.

SECTION 18. Implementing Rules and Regulations- The LCPC shall promulgate rules and regulations necessary for an efficient and effective implementation of this Ordinance that shall have full force and effect of the law.



SECTION 19. Penalties- Any person who violates any provision of this ordinance shall suffer the penalty of not more than one (1) year of imprisonment or a fine not more than Two Thousand Five Hundred Pesos (Php2,500.00) or both at the discretion of the court. When the offender is a foreigner, the penalty provided herein shall be imposed in its maximum period and they shall be deported immediately after service of sentence. The penalty provided in this Ordinance shall be imposed in its maximum period if the offender has been previously convicted under R.A. 7610, P.D. 603, or other related laws.

SECTION 20. Repealing Clause- All provision of this Ordinance, Executive Orders, or Resolution, as well as pertinent rules and regulation thereof, inconsistent with any of the provisions herewith are hereby repealed and/or amended accordingly.

SECTION 21. Separability Clause- If for any reason/s any part of this Ordinance shall be held unconstitutional or invalid, other parts hereof which are not affected thereof shall continue to be in full force and effect.

SECTION 22. Effectivity- This Ordinance shall take effect fifteen (15) days following its posting in the bulletin board at the entrance of the Government Center of the Local Government Unit of Carmen, Surigao del Sur and in two (2) conspicuous places in the municipality.

ENACTED this 13th day of August, 2024 at Carmen, Surigao del Sur.

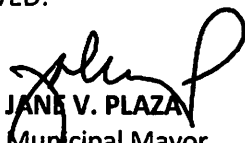
I HEREBY ATTEST to the correctness of the foregoing ordinance.


MA. JULINA T. BORDA- JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan


CERTIFIED CORRECT:


HARVEY S. MANAWATAO
Municipal Vice-Mayor/
Presiding Officer

APPROVED:


JANE V. PLAZA
Municipal Mayor